

Court No. - 37

Case :- WRIT - C No. - 17521 of 2014

Petitioner :- Chunni Lal Gupta

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Upendra Kumar Tiwari

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Vineet Saran, J.

Hon'ble Attau Rahman Masoodi, J.

The matter does not relate to recovery. As such, this Bench will not have jurisdiction to entertain this writ petition.

Put up as a fresh case before the appropriate Bench on 1.4.2014.

Order Date :- 27.3.2014

p.s.

(Attau Rahman Masoodi, J.)

(Vineet Saran, J.)

A.F.R.

Court No. - 21

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Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Upendra Kumar Tiwari

Counsel for Respondent :- C.S.C.,Dr. S.K. Yadav

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Vivek Kumar Birla,J.

Heard Sri Upendra Kumar Tiwari learned counsel for the petitioner and Sri S. K. Yadav for the respondent-Electricity Supply Company Ltd.

The petitioner is aggrieved by the process adopted by the respondents in calling upon the petitioner to deposit the amount as per the alleged revised bill dated 06.08.2013 in respect of an electricity connection of the shop in question.

The petitioner is the owner of a shop and it appears that a raid was conducted on 06.08.2013 and a checking report was prepared and an F.I.R. was also lodged against the petitioner alleging theft of electricity.

The impugned bill, which has been captioned as a "revised bill" is dated 06.08.2013 that is of the same day on which the raid was conducted.

The legal ground for challenging the said

bill is that as per clause 8.1 (b) (iii), after a raid is conducted, the consumer shall be served with a provisional assessment bill with 15 days time to give response thereto whereafter a final order will be passed on hearing in relation to the said charges that are to be realized from the petitioner.

Sri S. K. Yadav, Advocate on the other hand contends that so far as the impugned bill is concerned, it is founded on the calculation as provided for under the Electricity Supply Code, 2005 and it does not suffer from any infirmity. He, otherwise, submits that against the assessment of the Bill, the petitioner has a remedy of filing an appeal against the same.

We have considered the aforesaid submission and we find that date of raid and the date of the impugned bill is one and the same, namely, 06.08.2013. It is, thus, clear that the provision of clause 8.1 (b) (iii) has not been complied with and the petitioner appears to have been served the bill captioned a "revised bill."

It is not possible to pass an order of final assessment when the statute itself provides 15 days notice and opportunity of reply and hearing to the consumer before such final

assessment is made. In the instant case, the alleged revised bill has been served on the same day without following the abovementioned procedure.

In the opinion of the Court, the said bill can, at best, be treated to be a provisional bill. Consequently the petitioner has a right to object to the same and consequently, the petitioner will file his objection and the same shall be decided in terms of the aforesaid provisions, if final assessment order has not yet been passed.

After the orders are passed or have been passed ,it shall be open to the petitioner to file an appeal under Section 127 of the Electricity Act, 2003,

The writ petition is disposed of with the above observations.

Order Date :- 1.4.2014/YK